

STATE OF NEW YORK

6551--A

2025-2026 Regular Sessions

IN SENATE

March 17, 2025

Introduced by Sens. BAILEY, CLEARE, COMRIE, JACKSON, RHOADS -- read twice and ordered printed, and when printed to be committed to the Committee on Insurance -- recommitted to the Committee on Insurance in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to including image-guided biopsies under certain insurance coverage for breast cancer screening

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Item (iv) of subparagraph (A) of paragraph 11 of subsection
2 (i) of section 3216 of the insurance law, as amended by chapter 424 of
3 the laws of 2024, is amended to read as follows:

4 (iv) upon the recommendation of a physician, screening and diagnostic
5 imaging, including diagnostic mammograms, breast ultrasounds, image-
6 guided breast biopsies, or magnetic resonance imaging, recommended by
7 nationally recognized clinical practice guidelines for the detection of
8 breast cancer. For the purposes of this item, "nationally recognized
9 clinical practice guidelines" means evidence-based clinical practice
10 guidelines informed by a systematic review of evidence and an assessment
11 of the benefits, and risks of alternative care options intended to opti-
12 mize patient care developed by independent organizations or medical
13 professional societies utilizing a transparent methodology and reporting
14 structure and with a conflict of interest policy.

15 § 2. Item (v) of subparagraph (A) of paragraph 11 of subsection (l) of
16 section 3221 of the insurance law, as amended by chapter 424 of the laws
17 of 2024, is amended to read as follows:

18 (v) upon the recommendation of a physician, screening and diagnostic
19 imaging, including diagnostic mammograms, breast ultrasounds, image-
20 guided breast biopsies, or magnetic resonance imaging, recommended by
21 nationally recognized clinical practice guidelines for the detection of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 breast cancer. For the purposes of this item, "nationally recognized
2 clinical practice guidelines" means evidence-based clinical practice
3 guidelines informed by a systematic review of evidence and an assessment
4 of the benefits, and risks of alternative care options intended to opti-
5 mize patient care developed by independent organizations or medical
6 professional societies utilizing a transparent methodology and reporting
7 structure and with a conflict of interest policy.

8 § 3. Subparagraph (E) of paragraph 1 of subsection (p) of section 4303
9 of the insurance law, as amended by chapter 424 of the laws of 2024, is
10 amended to read as follows:

11 (E) upon the recommendation of a physician, screening and diagnostic
12 imaging, including diagnostic mammograms, breast ultrasounds, image-
13 guided breast biopsies, or magnetic resonance imaging, recommended by
14 nationally recognized clinical practice guidelines for the detection of
15 breast cancer. For the purposes of this subparagraph, "nationally recog-
16 nized clinical practice guidelines" means evidence-based clinical prac-
17 tice guidelines informed by a systematic review of evidence and an
18 assessment of the benefits, and risks of alternative care options
19 intended to optimize patient care developed by independent organizations
20 or medical professional societies utilizing a transparent methodology
21 and reporting structure and with a conflict of interest policy; and

22 § 4. This act shall take effect January 1, 2027 and shall apply to all
23 policies and contracts issued, renewed, modified, altered or amended on
24 or after such date.